

Panama - Obligations for Financial and Non-Financial Entities and Corporate Transparency

Due diligence duties, resident agent obligations and beneficial ownership registration

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Modelled on public sources	Panamanian AML law framework and beneficial ownership registry legislation, publicly available
Classification	SYNTHETIC - HACKATHON TRAINING DATA

This document is synthetic content authored for a multi-agent fraud intelligence hackathon. It paraphrases the structure and themes of public materials (Panamanian AML law framework and beneficial ownership registry legislation, publicly available) but contains no verbatim reproduction of them. Thresholds, codes and identifiers are illustrative.

1. Obligated subjects

Financial subjects include banks, trust companies, securities firms and money remitters. Non-financial subjects include resident agents, free zone operators, casinos, real estate brokers and precious metal dealers, each supervised by a designated authority.

2. Corporate transparency

- Resident agents must identify the beneficial owner of every legal entity for which they act and record the information in the private beneficial ownership registry within a defined period after incorporation.
- Bearer shares must be immobilised with an authorised custodian.
- Failure to keep registry information current is grounds for entity suspension and eventual striking off.
- Accounting records must be maintained and made available to the resident agent.

3. Local red flags

- Entity incorporated with a nominee director and a resident agent, with sole activity being receipt and onward transfer of funds.
- Free zone entity invoicing for goods that never physically enter or leave the zone.
- Beneficial owner information changed shortly before a large inbound transfer.
- Foundation or trust structure holding real estate in a third country with no identified economic purpose.